

Court No. - 21

Case :- WRIT - C No. - 11271 of 2017

Petitioner :- Smt. Mamata Verma

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Pramod Srivastava

Counsel for Respondent :- C.S.C., Pankaj Kumar Shukla

Hon'ble V.K. Shukla, J.

Hon'ble Ashok Kumar, J.

Smt. Mamata Verma is before this Court with the request that correct bills have not at all been issued in her favour, in view of this, respondents be directed to furnish the correct bills in favour of petitioner so that the petitioner is in a position to clear the electricity dues.

This much is accepted position, in the present case, that since last eight years the electricity dues have not at all been paid and it appears that petitioner time and again has been disputing the correctness of the bills that are being raised and this much is also accepted position that time and again the said objections have been entertained by correcting the bills in question and petitioner, in spite of the same, has not at all proceeded to make payment and is now before this Court with the submission that still the bills in question, that have been so raised, are not at all commensurate to the consumption, as such, the said bills requires rectification.

Dr. S.K. Yadav, Advocate, has entered appearance on behalf of opposite party nos. 2 to 4 and similarly Sri Pankaj Kumar Shukla, Advocate, has also entered appearance on behalf of opposite party nos. 2 to 4 and both of them are contending that they are authorized to represent the aforesaid respondents but as far as this Court is concerned, this Court is not at all going to this question and fact of the matter is that both the counsel have appeared before us and in chorus they both submitted that under Electricity Act, 2003 read with Electricity Supply Code, 2005 as far as disputes in reference of bills and arrears are concerned, it has to be adjudicated within the four corners of the statutory provisions provided for and that too after fulfilling the pre-requisite terms and conditions.

Before we proceed to examine the facts of the case, we have proceeded to examine the Paragraph 6.5 (b) of the Electricity Supply Code, 2005 and for ready reference the relevant extract of Paragraph 6.5(b) is being quoted hereinbelow:

"If a consumer disputes the accuracy of any bill, he may either make the payment under protest of-

(i) an amount of equal to the sum claimed from him, or

(ii) the electricity charges, calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date

for payment. The complaint shall be decided within 7 days and consumer shall be informed:

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately, and the consumer shall be liable to pay the late payment surcharge."

A bare perusal of the provisions, quoted above, would go to show that if a consumer disputes the accuracy of any bill he may either make payment under protest of the amount equal to the sum claimed from him or the electricity charges calculated on the basis of average of electricity bills of the proceedings six months, whichever is less, and file a complaint with the competent authority before due date for payment and, thereafter, the complaint is obligated to be decided within seven days and consumer has to be informed, accordingly. Further, if the complaint is found to be correct by the competent authority, a revised bill shall be issued within seven days of the complaint and consumer shall be given seven days to make the payment and, in such a situation, the Consumer shall not be charged any late payment surcharge if the payment is made by the revised due date of payment and If payment has already been made, excess amount shall be adjusted in subsequent bills. Further, if the complaint is found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately, and the consumer shall be liable to pay the late payment surcharge.

Consequently, in the facts of the case, the provisions, quoted above, would go to show that a self contained full fledged mechanism is there by filing complaint after fulfilling the required formalities. Once a statutory forum is already available, we are not at all entertaining the writ petition but certainly we left it open for the petitioner to invoke the remedy, that has been provided for under Paragraph 6.5 (b) of the Electricity Supply Code, 2005.

With this, writ petition is **dismissed**, accordingly, on the ground of alternative remedy.

Order Date :- 10.3.2017
Shekhar